CALL TO THE BAR

Call to the Bar — Criminal Law & Procedure

Complete Summary · Sessions 11–15

Compiled from Julius's study sessions · For personal study

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PART I

Session 11 — Criminal Law I: Actus Reus & Mens Rea

CRIMINAL LAW I — the two building blocks: the guilty act and the guilty mind. Classification of crimes; voluntary acts and duty-based omissions; the MPC's four-rung mens rea ladder; mistake of fact and law; strict liability; causation.

SESSION 11: The Guilty Act and the Guilty Mind

The frame. A crime is a prohibited act joined to a prohibited mind. Every crime the exam tests breaks into the same four questions, in order:

1. **Actus reus** — was there a voluntary guilty act (or a guilty omission where a duty existed)?
2. **Mens rea** — what guilty mind does the crime require, and did the defendant have it?
3. **Concurrence** — did the mind and the act coincide in time?
4. **Causation** — for result crimes (homicide, arson), did the act cause the result?

Miss any one of the four and there is no crime. The examiner's favorite game is hiding which of the four fails.

Commonwealth bridge — and your twenty years carry you here: you know the Nigerian Criminal Code's Section 24 — "a person is not criminally responsible for an act or omission which occurs independently of the exercise of his will." That is actus reus voluntariness, and you have lived it. The American twists are three: the Model Penal Code's precise four-rung ladder of mental states (purpose, knowledge, recklessness, negligence) — recklessness-vs-negligence is the single most-tested boundary; the exam's habit of making you choose between the common-law rule and the MPC rule on the same facts; and mala in se vs. mala prohibita, which you know from police work as "real crime" vs. "regulatory offence." You know this; here is the US twist.

Retrieval warm-up — from memory, before you read further

1. State the Hadley gate in one sentence. *(Consequential damages recoverable only if reasonably foreseeable to both parties AT FORMATION.)*
2. UCC §2-712 vs. §2-713 — when does each apply? *(§2-712 cover: buyer actually covered in good faith without unreasonable delay → cover − K. §2-713 market: buyer did NOT cover → market-at-learned-of-breach − K.)*

3. Liquidated damages vs. penalty — the test and when it is judged. *(Enforceable if, AT FORMATION, damages were difficult to estimate and the amount was a reasonable forecast; unreasonably large = void penalty.)*
4. New terms, defined before any question about them: **Actus reus** = the guilty act — the voluntary physical conduct (or duty-based omission) the statute punishes. **Mens rea** = the guilty mind — the mental state the statute requires. **Concurrence** = the requirement that the guilty mind and guilty act coincide in time. **Model Penal Code (MPC)** = the American Law Institute's 1962 model criminal code — roughly half the states adopted it in whole or in part, and the bar exam tests its rules alongside the common-law rules. **Mala in se** = wrong in itself (murder, theft). **Mala prohibita** = wrong only because prohibited (regulatory offences like unlicensed driving).

Spaced review — Sessions 1–10 in one line each

- **S1:** UBE map + NY pass 266/400 + MPRE (85) + NY Law Course/Exam; BOLE evaluation FILED (2026-10-12).
- **S2:** Intent = purpose or substantial certainty; transferred intent among battery, assault, false imprisonment, trespass; IIED needs extreme-and-outrageous + severe distress.
- **S3:** Trespass to land = unauthorized entry; conversion = full-value interference; defenses roundup (consent, self-defense — never deadly force for property alone, necessity, shopkeeper's privilege).
- **S4:** Negligence gates — duty (no general duty to rescue a stranger) → breach (reasonable person; negligence per se) → cause in fact (but-for; Summers v. Tice) → proximate cause (Palsgraf foreseeable plaintiff; eggshell rule; superseding acts).
- **S5:** Premises liability — classify the entrant FIRST; NIED (impact / Dillon v. Legg bystander); contributory = total bar (Maryland still has it); pure vs. modified comparative; assumption of risk.
- **S6:** Strict liability skips the breach fight; products — three theories, three defects (manufacturing/design/failure-to-warn), chain of distribution.
- **S7:** Formation — offer (objective standard; ads = invitations; counteroffer kills the offer); acceptance (mirror-image at common law; mailbox rule); consideration (bargained-for; past consideration/pre-existing duty/illusory fail; §90 safety net).
- **S8:** Classify FIRST, rule SECOND. **Correction banked:** a car is UCC goods (§§2-102, 2-105), not common-law territory — governing law is always step zero.
- **S9:** Enforceability — Statute of Frauds (MYLEGS; UCC §2-201 ≥$500 writing + exceptions); defenses roundup (fraud 5 elements; physical duress = void, economic = voidable; undue influence → burden shifts; mutual vs. unilateral mistake; unconscionability; incapacity; illegality); parol evidence rule (total vs. partial integration; 5 exceptions). Both weak

boundaries (one-year finish-vs-end; parol-evidence formation-attack vs. term-adding) now solid — 4/4 on reinforcement.

- **S10:** Performance — express conditions = strict compliance (§229 forfeiture excuse; prevention); constructive = substantial performance; material vs. minor via §241; anticipatory repudiation + retraction; UCC §2-609 assurance / §2-508 cure. Remedies ladder: expectation → Hadley gate at formation → mitigation → liquidated-vs-penalty → specific performance (unique subject, never personal services); UCC cover/market/resale/lost-volume machinery.

PART 1 — How American law classifies crimes

Felony vs. misdemeanor vs. infraction. The line is the punishment: a **felony** is punishable by death or imprisonment **exceeding one year** (served in state prison/penitentiary); a **misdemeanor** carries **one year or less** (usually county jail); an **infraction** (or violation) carries **no jail at all — fine only** (traffic tickets). On the exam, "felony" is a trigger word — felony murder, burglary ("breaking and entering with intent to commit a felony therein"), and accomplice rules all key off it.

Common-law crimes vs. statutory crimes. Nearly all American criminal law today is **statutory** — written codes, not judge-made law. The old common-law labels (murder, larceny, burglary, arson) survive, but as statutory definitions. If a statute doesn't prohibit it, it isn't a crime — no matter how wrongful.

Mala in se vs. mala prohibita. *Mala in se* — wrong in itself (murder, rape, theft): the moral wrong is obvious. *Mala prohibita* — wrong only because the law prohibits it (unlicensed driving, selling alcohol after hours): regulatory offences. This distinction drives the strict-liability analysis in Part 4 — strict liability lives almost entirely in the *mala prohibita* regulatory world.

The Model Penal Code. The **MPC** is the American Law Institute's 1962 model criminal code. Roughly half the states adopted it in whole or in part. The bar exam tests **both** the common-law rule **and** the MPC rule — and its favorite move is a question where they differ. The words "under the Model Penal Code" are your signal to switch rulebooks.

PART 2 — Actus reus: the voluntary act

The act must be voluntary. *Martin v. State*: police found a drunk man in his home, dragged him onto the public street, and arrested him for public drunkenness. Conviction reversed — "being in public while drunk" was not **his** voluntary act; the police put him there. Unconscious conduct never counts: reflexes, convulsions and seizures, sleepwalking, a hypoglycemic episode. Note the trap: **voluntary intoxication does not make the act**

involuntary — choosing to drink was voluntary. But the *actus reus element itself* — the conduct the statute punishes — must be voluntary bodily movement.

Omissions: guilty only with a legal duty. A failure to act is an actus reus ONLY if the defendant had a **legal** duty to act. The five duty sources — memorize them:

1. **Statute** — failure to file taxes, hit-and-run reporting duties.
2. **Status relationship** — parent–child, spouse–spouse.
3. **Contract** — lifeguard, babysitter, nurse.
4. **Voluntary assumption / undertaking** — you begin a rescue; you may not abandon it and leave the victim worse off.
5. **Creation of the peril** — you knock someone into the river, even accidentally; you now have a duty to at least attempt rescue or call for help.

The MBE's favorite omission trap is the same as Torts Session 4's nonfeasance rule: **no general duty to rescue a stranger**. Moral duty is not legal duty.

Status crimes are unconstitutional. *Robinson v. California*: California made it a crime to "be addicted to the use of narcotics." Struck down — cruel and unusual punishment (8th Amendment). You may punish the **act** (possessing, using, selling), never the **status** of being an addict, being homeless, being poor. *Powell v. Texas* draws the line: appearing drunk **in public** is conduct — punishable.

Possession counts — thoughts don't. Knowing possession (knowledge + control, including constructive and joint possession) satisfies actus reus. Pure thoughts never do — but **conspiracy** punishes the *agreement* (the agreement is the act) and **attempt** punishes the *substantial step*. MPC §2.01 states the floor: voluntary bodily movement is required; possession is an act only if the possessor **knowingly procured or received** the thing, or was **aware of his control** of it long enough to have terminated it.

PART 3 — Mens rea: the four-rung ladder

The common-law buckets. (1) **Specific intent** — intent to bring about the specific result: first-degree premeditated murder, burglary, attempt, larceny. (2) **Malice** — reckless disregard, the "abandoned and malignant heart": second-degree murder, arson. (3) **General intent** — awareness of doing the act itself: battery, rape. (4) **Strict liability** — no mental state required at all.

The MPC ladder (§2.02) — memorize top to bottom:

- **PURPOSE** — it is his **conscious object** to cause the result. "That is exactly what I wanted."

- **KNOWLEDGE** — he is **aware it is practically certain** his conduct will cause the result. Lighting a match in a hay-filled barn: he doesn't *desire* the fire, but he knows it is practically certain.
- **RECKLESSNESS** — he **consciously disregards a substantial and unjustifiable risk** — a gross deviation from the law-abiding person's standard. SUBJECTIVE: he must have *perceived* the risk and brushed it aside.
- **NEGLIGENCE** — he **should have been aware** of a substantial and unjustifiable risk — a gross deviation. OBJECTIVE: he didn't see it, but a reasonable person would have.

The recklessness–negligence line is the single most-tested boundary in criminal law. Both require a *gross* deviation — ordinary carelessness is neither. The difference is purely subjective: recklessness = he SAW the risk and disregarded it; negligence = he never saw it but SHOULD have. Drill 2 below lives exactly on this line.

The silence rule. Where the statute prescribes **no** mental state, the MPC reads in **at least recklessness** (§2.02(3)). This is the American presumption against strict liability — *Morissette v. United States*: for crimes derived from the common law, courts presume the legislature meant to require *some* mens rea; Congress doesn't create serious strict-liability crimes by accident.

Transferred intent — the Torts bridge. You know this from Session 2: aim at A, kill B — the intent transfers, and the defendant is guilty of murder **of B**. The MPC doesn't use the label but reaches the same result through its causation rules (§2.03).

Concurrence — mind and act must coincide. *Thabo Meli v. Regina* (Privy Council, 1954): men beat the victim, believed him dead, then rolled the "body" off a cliff — the fall actually killed him. Murder — the whole sequence was **one continuing transaction**, so intent and the fatal act concurred. The MBE's concurrence trap: D decides to kill V, aims, the gun jams; D abandons the plan; an hour later, driving home with no intent at all, D accidentally runs V over. No murder — at the fatal act there was no guilty mind. (Most exam hypos are saved by the continuing-transaction idea; the trap hypos deliberately break the sequence.)

The mens rea checklist: (1) voluntary act or duty-based omission? (2) What mental state does the statute require — pick the rung (MPC) or bucket (common law)? (3) Did mind and act coincide? (4) Result crime → causation (Part 5).

PART 4 — Mistake, and strict liability

Mistake of fact — the rule changes with the crime's mental state:

- **Specific-intent crimes:** ANY honest mistake defeats — even an unreasonable one. (Taking a coat he honestly believed was his = no larceny, because larceny needs intent to steal.)

- **Malice / general-intent crimes:** the mistake must be honest AND **reasonable**.
- **Strict-liability crimes:** mistake is NEVER a defense — not even a reasonable one. Drill 4 tests exactly this.

Mistake/ignorance of law — generally NO defense. "Everyone is presumed to know the law." Three narrow exceptions the exam loves:

1. **Lambert v. California** — due process requires fair notice where the conduct is **wholly passive** and the defendant had **no notice** of the duty (a felon who failed to register in Los Angeles — conviction reversed).
2. **Reasonable reliance on an official statement of law** later held invalid (MPC §2.04(3)(b)) — e.g., an attorney general's opinion you followed in good faith.
3. **Mistake of law that negates a required specific intent** — "willfulness" crimes like tax evasion (*Cheek v. United States*): an honest belief you owed no tax, even if unreasonable, defeats willfulness.

Strict liability — the regulatory corner. Strict-liability crimes punish without any mens rea: selling alcohol to minors, statutory rape **as to the victim's age**, adulterated food. *Morissette* sets the boundary: courts read mens rea into serious, common-law-derived crimes; strict liability is tolerated for minor **public-welfare / regulatory** offences — the *mala prohibita* world. The MPC confines it further: strict liability is allowed only for **"violations"** — offences carrying **no imprisonment** (§2.05). Exam habit: if the punishment is serious jail time and the crime is *mala in se*, strict liability is almost certainly NOT the answer.

PART 5 — Causation (result crimes)

Actual cause — the but-for test. "But for the defendant's act, would the result have occurred?" Where two acts are each independently sufficient (two hunters' bullets, two fires), use the **substantial-factor** test — your Torts Session 4 bridge (*Summers v. Tice*).

Proximate cause — foreseeability, and the intervening-act analysis. After but-for, ask: was there an **intervening act**, and what kind?

- **Responsive interveners** — the victim flees and is struck by a car; doctors treat the wound negligently; a rescuer acts clumsily. The chain **survives** unless the response is **grossly abnormal**.
- **Coincidental interveners** — unrelated events: lightning strikes the victim in the hospital; an unrelated second attacker appears. These **break** the chain if unforeseeable.

The MPC version (§2.03): no liability where the actual result is **too remote or accidental in its occurrence** — too different from what was intended or risked — to have a just bearing on culpability.

The year-and-a-day rule is dead. The common law barred homicide prosecution if the victim died more than a year and a day after the act. **Abolished in most states** — the MBE mentions it only to test that it's gone.

The causation checklist: (1) but-for (or substantial factor)? (2) Intervening act? (3) Responsive → chain survives (unless grossly abnormal); coincidental → chain breaks if unforeseeable.

MEE essay angle. Criminal-law essays are **elements essays**: list each element — actus reus, mens rea, concurrence, causation — apply each to the facts, state the common-law AND MPC rule wherever they differ, and conclude. Graders reward the element checklist and the explicit rule-switch ("At common law…; under the MPC…").

PRACTICE — four fresh drills. Attempt each (one letter) BEFORE reading the analysis.

Drill 1 — Voluntary act. Police find D heavily intoxicated inside his own apartment. They drag him out onto the public sidewalk and arrest him for "being drunk in a public place," a misdemeanor. At trial, D moves for acquittal. How should the court rule?

A) Deny the motion — D was in fact drunk in a public place.
B) Grant the motion — the actus reus (being in public while intoxicated) was not D's voluntary act; the police put him there.
C) Deny the motion — D voluntarily became intoxicated, so the act requirement is satisfied.
D) Grant the motion — but only because the police lacked probable cause for the arrest.

Drill 2 — Recklessness vs. negligence (the most-tested line). A statute provides: "A person commits assault if he recklessly causes bodily injury to another." D, annoyed at his neighbor V, fires a shot into the air near V's yard to frighten him, reasonably believing V is away at work. Unbeknownst to D, V is napping in a hammock behind the shed; the bullet grazes V's arm. D testifies, credibly, that it never occurred to him anyone could be in the yard. D is:

A) Guilty — firing a gun near a dwelling is inherently reckless conduct.
B) Guilty — his intent to frighten V transfers to the bodily injury.
C) Not guilty — recklessness requires conscious disregard of a perceived risk, and D perceived no risk to any person.
D) Guilty — the statute requires only causation, so negligence suffices.

Drill 3 — Omission and the duty to rescue. H, an expert swimmer, is hiking when he sees a stranger slip and fall into a deep river. H could have saved the stranger with no risk to

himself, but keeps walking. The stranger drowns. H is charged with involuntary manslaughter based on his omission. Result?

A) Guilty — he could have saved the man with no risk to himself.
B) Guilty — his failure to act was the but-for cause of the death.
C) Not guilty — the law imposes no general duty to rescue a stranger; none of the five duty sources applies.
D) Not guilty — an omission can never supply the actus reus of a crime.

Drill 4 — Mistake of fact vs. strict liability. D, age 19, has consensual intercourse with V, age 15. V told D she was 18, showed a convincing fake ID, and looked 18; a reasonable person would have believed her. The jurisdiction's statutory-rape statute makes the victim's age a strict-liability element. Result?

A) Not guilty — D's mistake was both honest and reasonable.
B) Not guilty — D lacked the mens rea for the offence.
C) Guilty — as to the victim's age the offence is strict liability; even a reasonable mistake of fact is no defence.
D) Guilty — but only because the jurisdiction follows the common-law approach.

ATTEMPT BREAK — send your four letters (e.g., "B, C, C, C") before reading on. The checking key below is HELD BACK.

CHECKING KEY — Drill Analyses

1. **B.** *Martin v. State.* The actus reus the statute punishes — being in a public place while intoxicated — was not D's voluntary act; the police supplied the "public place" element. A states the facts but ignores voluntariness. C is the trap: voluntary intoxication doesn't satisfy the voluntariness of the *prohibited conduct itself*. D invents a probable-cause issue that isn't in the facts.
2. **C.** Recklessness is SUBJECTIVE — conscious disregard of a perceived risk. D perceived no risk to any person (credible testimony + reasonable belief the yard was empty), so he lacked recklessness; at most he was negligent, which this statute doesn't punish. A applies an objective "inherently reckless" standard — that's negligence language. B misuses transferred intent — there was no criminal intent toward V to transfer, and transferred intent doesn't convert negligence into recklessness. D misreads the statute, which expressly requires recklessness.
3. **C.** No general duty to rescue a stranger — moral duty ≠ legal duty, and none of the five duty sources (statute, status, contract, undertaking, creation of peril) applies to H. A states a moral argument, not law. B confuses causation with duty — but-for cause is irrelevant if there was no duty to act. D is overbroad: omissions CAN supply actus reus where a legal duty exists.

4. **C.** Strict liability as to age: no mens rea required, so no mistake-of-fact defence — even a reasonable one. A states the rule for malice/general-intent crimes, not strict liability. B is wrong because the statute requires no mens rea as to age. D is nonsense — the result follows from the statute's strict-liability designation, not from common-law vs. MPC.

Weak areas (update after grading): pending his Session 10 letters, then these four.
Next: Session 12 — Criminal Law II: homicide — murder (degrees, depraved heart, felony murder), voluntary and involuntary manslaughter, and the MBE's causation traps in death cases.

PART II

Session 12 — Criminal Law II: Homicide

MURDER, MANSLAUGHTER, AND THE MALICE LADDER. The four routes to malice aforethought; first vs. second degree; depraved heart; felony murder and its limits (merger, agency, res gestae); voluntary manslaughter / heat of passion; involuntary manslaughter; the MPC's parallel scheme.

SESSION 12: The Malice Ladder — Who Died, and With What Mind

The frame. Session 11 gave you the four-element frame (actus reus → mens rea → concurrence → causation). Homicide is where that frame gets its hardest workout — because the *actus reus* is identical in every case (a human being died), and the entire legal outcome turns on the *mens rea*. Murder, manslaughter, negligent homicide: same dead body, different mind.

Climb the ladder from the top:

- **First-degree murder** — killing with *premeditated* intent to kill.
- **Second-degree murder** — killing with *malice aforethought* but no premeditation.
- **Voluntary manslaughter** — intentional killing in *heat of passion upon adequate provocation*.
- **Involuntary manslaughter** — *unintentional* killing by criminal negligence, or during a misdemeanor.
- *(MPC adds: negligent homicide — death by ordinary negligence.)*

Everything below is about drawing these lines. The examiner's favorite game: two fact patterns that look identical, separated by one mental state.

*Commonwealth bridge — you have enforced this vocabulary before: the Nigerian Criminal Code you worked under uses the same phrase, **malice aforethought**, and the same doctrine that adequate provocation reduces murder to manslaughter. You know the shape of this ladder. The US twists are three: (1) the common-law exam splits murder into first and second degree around **premeditation**, and the exam loves testing that premeditation can form in an instant; (2) the **felony-murder rule** has sharper limits than most Nigerian-trained lawyers expect — the merger doctrine in particular; and (3) the MPC rewrites the whole ladder with its own names, and "under the Model Penal Code" is your signal to switch rulebooks.*

New terms, defined before any question about them

- **Homicide** — the killing of a human being by another human being. Only *unlawful* homicide is criminal; justifiable homicide (lawful self-defense, execution of a lawful sentence) is not a crime at all.
- **Malice aforethought** — the mental state that makes a killing *murder*. A term of art: it does NOT mean "planned in advance." It means the defendant acted with **(1) intent to kill, (2) intent to inflict serious bodily injury, (3) depraved heart (extreme recklessness), or (4) during a felony (felony murder)**. Memorize all four.
- **Premeditation** — thinking about the killing beforehand; required, with deliberation, for *first-degree* murder. It can be formed in moments — no lengthy planning needed.
- **Depraved heart** — an act of extreme recklessness creating a very high risk of death, done with extreme indifference to human life ("abandoned and malignant heart").
- **Felony murder** — a killing committed during an inherently dangerous felony; malice is implied from the felony itself.
- **Heat of passion** — the sudden intense emotional state (rage, terror) that, when caused by *adequate provocation* with no cooling time, reduces murder to voluntary manslaughter.
- **EMED** — the MPC's broader version: *extreme mental or emotional disturbance* with a reasonable explanation, viewed from the defendant's situation.

Retrieval warm-up — from memory, before you read further

1. State the four elements of a crime, in order. *(Actus reus → mens rea → concurrence → causation. Miss one, no crime.)*
2. Recite the MPC mens rea ladder top-down, with the one-word essence of each. *(Purpose = conscious object; knowledge = practically certain; recklessness = conscious disregard — SUBJECTIVE; negligence = should have known — OBJECTIVE.)*
3. Name the five sources of a legal duty to act (omission actus reus). *(Statute; status relationship; contract; voluntary undertaking; creation of the peril.)*
4. Mistake of fact — state the rule for each bucket. *(Specific intent: any honest mistake; malice/general intent: honest + reasonable; strict liability: never a defense.)*

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- **S11:** Four-element crime frame; actus reus voluntariness (Martin v. State); omissions need one of five duty sources; status crimes unconstitutional (Robinson); MPC ladder purpose/knowledge/recklessness(SUBJECTIVE)/negligence(OBJECTIVE); mistake-of-fact buckets; strict liability = regulatory mala prohibita only; causation but-for + too-remote (MPC §2.03).

PART 1 — Murder = killing + malice aforethought

The formula. Common-law murder = **the unlawful killing of a human being with malice aforethought.** Break it open:

- **Unlawful killing** — not justified (lawful self-defense, war, execution) and not excused. Actus reus + causation from Session 11 do this work.

- **Of a human being** — at common law, the victim must have been **born alive**. A fetus is not a "human being" at common law (modern statutes create separate feticide offenses; the MPC defines human being as born and alive — §210.0).
- **With malice aforethought** — the mental state, and here is the part that fails students: "malice aforethought" is a **term of art** meaning any one of four mental states:

1. **Intent to kill** (express malice) — "I meant for him to die."
2. **Intent to inflict serious bodily injury** (implied malice) — "I didn't mean to kill him, but I meant to hurt him badly." The death that follows a meant beating is murder.
3. **Depraved heart** — extreme recklessness manifesting extreme indifference to human life (Part 3).
4. **Felony murder** — killing during an inherently dangerous felony (Part 4).

Any ONE of the four = malice aforethought = murder. The word "aforethought" does not mean the defendant thought about it beforehand — that is **premeditation**, a separate concept that divides first from second degree.

Degrees of murder. Most American jurisdictions grade murder:

- **First-degree murder** = a killing that is **deliberate AND premeditated**, plus (in most statutes) felony murder. **Deliberate** = the defendant weighed it — considered the pros and cons, however briefly. **Premeditated** = thought about it beforehand — and the exam's golden trap: **premeditation can be formed in an instant.** There is no minimum thinking time. A defendant who, mid-argument, decides "I'm going to kill him," reaches for a weapon, and fires, has premeditated — seconds are enough. What defeats premeditation is not speed but *heat of passion* (Part 5).
- **Second-degree murder** = every other murder — all malice killings without premeditation and deliberation. Intent to kill formed in the moment but acted on with cool reflection absent? That is the first/second boundary the exam probes.

The two-step classification method (use on every homicide question):

1. *Is it murder at all?* — check malice aforethought (the four routes). If none of the four fits, it is manslaughter or no crime.
2. *If murder, which degree?* — deliberate + premeditated = first; everything else = second.

PART 2 — Depraved heart: murder without meaning it

The rule. An unintentional killing is still **murder** — second degree — when the defendant acted with **extreme recklessness manifesting extreme indifference to the value of human life**: the "abandoned and malignant heart." The act must create a **very high risk of death or serious bodily injury** — not just an unreasonable risk (that would be negligence),

but a risk so grave that the conduct shows the defendant simply did not care whether someone died.

Classic examples: firing a gun into an occupied house or a crowd; driving a car onto a crowded sidewalk; throwing a heavy rock off an overpass into traffic; playing Russian roulette with another person.

Where it plugs into Session 11. This is the MPC ladder's **recklessness** rung pushed to its extreme. Remember the line: recklessness is SUBJECTIVE — the defendant must have *consciously* disregarded the risk. Depraved heart = conscious disregard of a *very high* risk of death. Contrast:

- **Depraved heart** (extreme recklessness) → second-degree murder.
- **Ordinary recklessness** causing death → involuntary manslaughter (common law).
- **Criminal negligence** (gross deviation, objective) causing death → involuntary manslaughter.
- **Ordinary negligence** causing death → tort liability, and under the MPC, *negligent homicide* (a misdemeanor) — but at common law, no crime at all.

That four-way split is one of the most-tested distinctions on the MBE. Drill it until it is reflex.

PART 3 — Felony murder: the strict-liability murder

The rule. A killing committed **during the commission (or attempted commission) of an inherently dangerous felony** is murder — and the prosecution need not prove any intent to kill. The malice is *implied from the felony itself*. The accidental discharge during an armed robbery that kills the clerk = murder, even though the robber never meant to fire.

The limits — the exam tests the limits, not the rule. Five of them; memorize:

1. **Inherently dangerous felony.** The classic list: burglary, arson, rape, robbery, kidnapping. Some jurisdictions add a statutory list; others ask whether the felony was dangerous *as committed*. A non-dangerous felony (e.g., forgery) generally cannot support felony murder.
2. **Merger doctrine (the big one).** The underlying felony must be **independent of the killing itself**. You cannot bootstrap the very assault that caused the death into a felony and then call the death felony murder — the assault *merges* into the homicide. So: beating a victim to death during an aggravated assault = NOT felony murder. It is still **second-degree murder** — via malice route #2 (intent to inflict serious bodily injury). The merger doctrine kills the felony-murder *theory*, not the homicide *charge*. But armed robbery of a store where the clerk is shot = felony murder stands, because robbery is independent of the assault on the clerk.

3. **Agency theory (majority rule).** Only deaths **caused by the felon or his agent** count. If, during the robbery, the store guard or a police officer shoots back and kills a bystander — or kills one of the robbers — that is NOT felony murder (*People v. Redline* logic: the killing was by someone resisting the felony, not by a felon). A minority of jurisdictions extend felony murder to any foreseeable death during the felony, even caused by resisters — but majority = agency, and the exam defaults to majority unless told otherwise.
4. **Res gestae — "in the course of."** The killing must occur during the felony's natural scope: attempt, commission, and **immediate flight**. The flight continues until the felon reaches a **point of temporary safety**. A killing during the getaway chase = felony murder. A killing the next day, after the felon is home safe, = separate homicide, not felony murder.
5. **Foreseeable manner of death.** The death must be a foreseeable consequence of the felony. A bizarre, freakish causal chain can break felony murder just as it breaks proximate cause.

The MPC version (§210.2). The MPC has **no independent felony-murder rule**. Instead, committing (or attempting) robbery, rape, arson, burglary, kidnapping, or felonious escape creates a **rebuttable presumption** of recklessness manifesting extreme indifference — i.e., the MPC reaches the same result (murder) but through the depraved-heart route, and the defendant can rebut it. When the question says "under the Model Penal Code," reason it through §210.2, not through common-law felony murder.

PART 4 — Voluntary manslaughter: murder, minus the malice, because of provocation

The rule. An **intentional killing** committed in **heat of passion upon adequate provocation** is **voluntary manslaughter**, not murder. The provocation *negates malice* — the defendant still meant to kill, but the law treats the inflamed mind as less culpable. Think of it as murder with a partial defense built in.

The four elements (common law) — memorize:

1. **Adequate provocation** — the provocation must be such as would arouse **sudden and intense passion in a reasonable person**. The classic adequate provocations: catching one's spouse in the act of adultery; a violent assault or battery on the defendant; witnessing a violent attack on a close relative. **Mere words, however insulting, are NOT adequate provocation** (majority rule) — insults do not reduce murder to manslaughter. (A minority treats informational words — e.g., being *told* of the adultery — as adequate; know the majority rule for the MBE.)

2. **Actual subjective passion** — the defendant must *actually* have been in the heat of passion. A cold, calculated revenge killing after provocation = murder.
3. **No cooling time** — the killing must follow the provocation before a reasonable person would have cooled. This is judged **objectively**. Hours of brooding, leaving the scene and returning with a weapon = cooling time = murder. Seconds or minutes of continued rage = manslaughter.
4. **Causal connection** — the provocation must have caused the passion that caused the killing.

Two fine points the exam loves:

- **Misdirected retaliation:** the enraged defendant aims at the provocateur but kills a bystander. Still voluntary manslaughter — transferred intent (Session 2) carries the *mitigated* mental state along with it.
- **Burden and pleading:** the prosecution proves murder; the defendant raises provocation as mitigation. And note the asymmetry — provocation mitigates *intentional* killing to manslaughter, but it does NOT help a defendant whose conduct was depraved-heart or felony murder.

The MPC version (§210.3) — EMED. A homicide that would be murder is manslaughter when committed **under the influence of extreme mental or emotional disturbance for which there is a reasonable explanation or excuse**, judged from the viewpoint of a person in the defendant's situation. This is **broader** than common law: no rigid cooling-time requirement, and the "situation" includes the defendant's personal characteristics as the jury sees them. Classic exam use: the battered spouse who kills after years of abuse — no adequate common-law provocation, no heat of the moment, but a strong EMED argument.

PART 5 — Involuntary manslaughter: the unintentional killings

Two routes, both unintentional:

1. **Criminal negligence** — death caused by **gross** negligence: a gross deviation from the standard of care, more than ordinary tort negligence. The drunk driver who kills a pedestrian; the parent who leaves a loaded gun where a toddler reaches it. (Ordinary civil negligence causing death = no crime at common law; under the MPC = *negligent homicide*, a misdemeanor — §210.4.)
2. **Misdemeanor manslaughter (unlawful-act doctrine)** — death caused during the commission of a **misdemeanor or non-dangerous felony**. The mirror image of felony murder, one rung down: dangerous felony + death = murder; misdemeanor + death = involuntary manslaughter. Merger applies here too — the misdemeanor must be

independent of the killing (a simple assault that kills is not "misdemeanor manslaughter" via merger; it is analyzed under criminal negligence instead).

The recklessness line, one more time — because the MBE will make you draw it under pressure:

- Extreme recklessness (depraved heart) + death = **second-degree murder**
- Ordinary recklessness + death = **involuntary manslaughter** (common law) / **manslaughter** (MPC §210.3(1)(a))
- Criminal (gross) negligence + death = **involuntary manslaughter**
- Ordinary negligence + death = **no crime** (common law) / **negligent homicide** (MPC §210.4)

PART 6 — Causation in death cases: the traps

Session 11 built causation (but-for + proximate; responsive vs. coincidental interveners; MPC §2.03 "too remote"). In homicide the traps are:

- **Subsequent medical negligence is foreseeable** — the victim shot, then dies from a botched surgery: the shooter still caused the death (responsive intervener).
- **The victim's own conduct rarely breaks the chain** — refusing medical treatment on religious grounds, or a pre-existing condition (eggshell-skull in criminal dress: the victim's thin skull does not save the defendant).
- **Year-and-a-day rule: ABOLISHED in most jurisdictions.** At common law, the victim had to die within a year and a day of the act for homicide. The modern rule — and the MBE's trap answer — is that the rule is abolished; a death two years later from the original wound is still homicide (proximate cause permitting).
- **Concurrence in homicide:** *Thabo Meli* — defendants struck the victim, believed him dead, threw the "body" off a cliff; he was actually alive and died from exposure. One continuing transaction — actus reus and mens rea concurred. Murder stands.

PART 7 — Defenses against a homicide charge (roundup)

- **Self-defense** (Session 3's privilege, now with deadly stakes): deadly force is lawful only against an **imminent** threat of **death or serious bodily injury**. No deadly force for property alone. **Duty to retreat** before using deadly force in a minority of jurisdictions (if safe retreat is possible); **no duty to retreat** in the majority — and never in one's own home (**castle doctrine**). The **initial aggressor** cannot claim self-defense unless he clearly withdraws and communicates it. **Imperfect self-defense** — an honest but *unreasonable* belief in the need for deadly force — does not acquit; it reduces **murder to voluntary manslaughter**.

- **Insanity, intoxication, mistake** — Session 11's rules apply unchanged; note that voluntary intoxication can negate *specific intent* (including premeditation — reducing first-degree to second) but never supplies a full defense.
- **Consent** — never a defense to homicide. (Dueling deaths are murder on both sides' survivors.)

PRACTICE — four drills, one letter each

ATTEMPT BREAK — answer all four (e.g., "B, C, B, D") from the lesson above, then send the letters. Analyses are held back.

D1 — The parking-lot shooting. During a heated argument in a parking lot, D reaches into his open car door, takes a pistol from the glove compartment, and within seconds shoots V dead. D says he never planned anything — it all happened in a flash. Under the common-law approach, D is guilty of:

- **A.** Second-degree murder, because premeditation requires more than a few seconds of thought
- **B.** First-degree murder
- **C.** Voluntary manslaughter, because the heated argument was adequate provocation
- **D.** No homicide, because D lacked malice aforethought

D2 — The fatal beating. D, enraged at V over a debt, beats V with a baseball bat, intending to break his legs. V dies from the injuries. The prosecution charges felony murder, using aggravated assault as the underlying felony. D is properly guilty of:

- **A.** Felony murder — the death occurred during an inherently dangerous felony
- **B.** Nothing — the assault merges with the homicide, leaving no charge
- **C.** Second-degree murder, on an intent-to-inflict-serious-bodily-injury theory
- **D.** Involuntary manslaughter, because D did not intend to kill

D3 — Shots over the crowd. D, wanting to frighten people at a crowded street fair, fires his rifle several times into the air above the crowd. A falling bullet strikes and kills a bystander. D is guilty of:

- **A.** First-degree murder — firing a rifle at a crowd shows premeditation
- **B.** Second-degree murder, on a depraved-heart theory
- **C.** Involuntary manslaughter — D was merely criminally negligent
- **D.** No homicide — D never intended to kill anyone

D4 — The bedroom discovery. H walks into his bedroom and finds his wife in bed with another man. Enraged, H grabs a table lamp and immediately strikes the lover dead. H is guilty of:

- **A.** First-degree murder — grabbing the lamp and striking was deliberate and premeditated
- **B.** Second-degree murder
- **C.** Voluntary manslaughter
- **D.** Involuntary manslaughter — the killing was unintentional

ATTEMPT BREAK — send your four letters (e.g., "B, C, B, C") before reading on. The checking key below is HELD BACK.

CHECKING KEY — Drill Analyses

1. **B.** Deliberate + premeditated intent to kill = first-degree murder. The exam's golden trap is A: premeditation has no minimum thinking time — it can be formed in an instant, and reaching for the gun, however quickly, was reflection beforehand. C fails because a heated argument is mere words — not adequate provocation (majority rule). D ignores malice route #1: intent to kill IS malice aforethought.
2. **C.** The merger doctrine bars using the very assault that caused the death as the felony-murder predicate — the felony must be independent of the killing. But merger kills the *theory*, not the *charge*: D intended serious bodily injury (broken legs), and death resulting from intended SBI is malice route #2 — second-degree murder (no premeditation shown). A ignores merger. B over-reads merger — it eliminates felony murder, not homicide liability. D understates the mens rea: intent to inflict SBI is implied malice, not mere negligence.
3. **B.** Firing into/above a crowd = extreme recklessness manifesting extreme indifference to human life — the depraved (abandoned and malignant) heart, malice route #3, second-degree murder. A is wrong: no intent to kill and no premeditation. C understates it — this is far beyond criminal negligence; the risk of death was very high and consciously disregarded. D repeats the oldest trap in homicide: malice aforethought does not require intent to kill.
4. **C.** The classic adequate provocation — catching a spouse in the act of adultery — plus actual passion, no cooling time, and direct causal connection = voluntary manslaughter; the provocation negates malice. A is wrong: grabbing the nearest object in immediate rage is the opposite of deliberation. B ignores the mitigation — this is not unmitigated murder. D is wrong: the killing was intentional (aimed blows at the lover), just mitigated.

Weak areas (update after grading): pending his Session 11 letters, then these four. Watch the first/second-degree boundary (premeditation-in-an-instant) and the merger doctrine.
Next: Session 13 — Criminal Law III: attempt, conspiracy, solicitation (inchoate crimes) + accomplice liability — who else goes down with the principal.

PART III

Session 13 — Criminal Law III: Inchoate Crimes & Accomplice Liability

The big idea in one sentence

Today is about the crimes *before* the crime — the law punishes the almost, the agreement, and the asking — and about who else goes down with the person who actually did it.

New terms, defined before any question about them

- **Inchoate** (in-KOH-it): Latin for "just begun, incomplete." An **inchoate crime** is a crime that anticipates another crime. There are exactly three: **attempt**, **conspiracy**, **solicitation**.
- **Target crime** (also called the **substantive crime**): the crime being aimed at — the robbery that the attempt was aiming at, the burglary the conspiracy agreed on.
- **Merger**: when the lesser offense is absorbed into the greater, so there is only one conviction. (Attempt merges into the completed crime; conspiracy does NOT merge — memorize that pair.)
- **Renunciation / withdrawal / abandonment**: backing out before it is done. Each doctrine has its own rule — the exam tests whether you know which rule belongs to which crime.
- **Principal**: the person who commits the criminal act. **Accomplice**: one who helps. **Accessory after the fact**: one who helps the criminal escape *afterward* — a separate, lesser crime, not liability for the original offense.
- **Pinkerton liability** and **Wharton's rule**: defined in the conspiracy section below — both are among the most-tested names in criminal law.

Your bridge, Julius: under the Nigerian Criminal Code (ss. 516–517) you already know conspiracy — an agreement of two or more persons to commit an unlawful act. American law keeps that shape but adds traps the exam loves: the overt-act split between common law and the Model Penal Code, the unilateral-vs-bilateral fight over undercover agents, and Pinkerton. Same skeleton, new teeth.

PART 1 — Attempt: the almost-crime

Elements at common law — three, memorize the order:

1. **Specific intent** to commit the target crime (attempt always requires specific intent — this is the engine of half the exam traps);

2. An **overt act beyond mere preparation** toward committing it;
3. **Failure** — the crime is not completed.

The MPC version (§5.01): purpose (or belief that the conduct will cause the result) + a **"substantial step" strongly corroborative of criminal purpose**. The MPC's substantial-step test is more generous to the prosecution than the common-law line — conduct further from completion can still be attempt under the MPC.

The line the exam draws — preparation vs. perpetration:

- Buying a gun = mere preparation. Lying in wait outside the victim's office with the gun = attempt.
- Buying matches = preparation. Pouring gasoline around the building and striking the match = attempt.
- The exam will park the facts right on this line and ask which side. Under the common law ask: has he gone *beyond* preparation? Under the MPC ask: is this a *substantial step* strongly showing his criminal purpose?

Abandonment (the way out): a **complete and voluntary** abandonment before completion is a defense — but "voluntary" means a genuine change of heart. Stopping because the police arrived, because the victim fought back, or because the safe was harder to crack than expected is NOT voluntary abandonment. Mere postponement ("I'll come back tomorrow") is not abandonment either (MPC §5.01(4)).

Impossibility — the classic pair:

- **Factual impossibility is NEVER a defense** (both rulebooks). The pickpocket whose hand finds an empty pocket; the shooter who fires at a corpse, believing the victim alive; the buyer who pays street price for cocaine that turns out to be baking soda. The crime failed only because of facts the defendant didn't know — still attempt.
- **Legal impossibility IS a defense at common law.** The defendant does everything she set out to do, and even fully executed, it would not be a crime: "receiving stolen property" that was never actually stolen; hunting on Sunday in the sincere belief that Sunday hunting is illegal, when the statute was repealed years ago. The MPC largely wipes this defense out — it judges the conduct on the circumstances **as the defendant believed them to be** (§5.01).

The no-attempt rule (heavily tested): because attempt requires specific intent, there is **no such crime** as attempted depraved-heart murder, attempted felony murder, or attempted involuntary manslaughter — you cannot "intend" an unintentional killing. The moment you see "attempted" stapled to a crime that doesn't require intent to kill, the answer is acquittal on the attempt.

Merger: attempt **merges** into the completed crime — one conviction, for the completed offense.

PART 2 — Conspiracy: the agreement-crime

Elements at common law — three:

1. An **agreement** between two or more persons to commit an unlawful act (or to commit a lawful act by unlawful means);
2. **Intent** to enter the agreement;
3. **Intent** that the crime be committed (conspiracy is a specific-intent crime).

The agreement can be **tacit** — inferred from concerted action. No handshake, no meeting, no written plan required.

The overt-act split — the biggest exam trap in conspiracy:

- **Common law: NO overt act required.** The agreement *alone* is the crime. The moment two people genuinely agree to rob the bank, conspiracy is complete.
- **Federal law, most state statutes, and MPC §5.03(5): an overt act in furtherance IS required** — but *any* act will do, even a perfectly lawful one (buying a map, renting the getaway car, making a phone call). One refinement inside the MPC: for conspiracy to commit a felony of the **first or second degree** (robbery, for example), the MPC requires **no** overt act.

Bilateral vs. unilateral — the undercover-agent fight:

- **Common law (majority): bilateral** — it takes two genuinely guilty minds. An "agreement" with an undercover officer who is only pretending = **no conspiracy**. You can't agree with yourself.
- **MPC (minority, but heavily tested): unilateral** — one genuine criminal mind is enough. The defendant who agrees with a feigning undercover agent **IS** guilty of conspiracy.

No merger: conspiracy does **NOT** merge with the completed target crime. Conviction for both the conspiracy *and* the completed robbery is proper. (Pair it: attempt merges, conspiracy doesn't.)

Pinkerton liability (*Pinkerton v. United States*): each conspirator is liable for **substantive crimes committed by co-conspirators in furtherance of the conspiracy**, so long as they were **reasonably foreseeable** — even crimes the defendant didn't personally participate in or know about in advance. The getaway driver who never entered the bank is liable for the murder his partner commits inside, if a killing was a foreseeable part of an armed robbery.

Contrast with accomplice liability (Part 4), which needs actual aid — Pinkerton needs only membership.

Withdrawal: to cut off liability for the conspiracy's *future* crimes, the withdrawing conspirator must **affirmatively communicate** the withdrawal to the co-conspirators (or notify the police / thwart the scheme) **before** the crime is committed. Walking away silently is not withdrawal. And withdrawal never erases liability for the **conspiracy itself** or for crimes **already committed**. (The MPC goes further and demands the withdrawing party actually *thwart* the scheme — know both, apply the one the question's rulebook uses.)

Wharton's rule: where the target crime **by its nature requires two participants** — dueling, adultery, bribery (giver *and* taker) — there can be **no conspiracy charge without a third conspirator**. Two people agreeing to the two-person crime is just the crime itself. (Courts often refuse to apply Wharton to drug transactions — one line, in case the exam dangles it.)

PART 3 — Solicitation: the asking-crime

Asking, commanding, encouraging, or requesting another person to commit a crime, **with intent** that the crime be committed. That is the whole crime.

Complete the moment the request is communicated — no agreement needed, no act by the other person needed. The person solicited need not even agree (if he *does* agree, it becomes conspiracy). The request must actually reach the other person — an uncommunicated "I wish someone would..." is not solicitation.

Merger: solicitation merges into conspiracy (if the other agrees) and into the completed offense.

Defense: voluntary and complete **renunciation** before the crime is committed.

PART 4 — Accomplice liability: who else goes down

The old labels (know them, then set them aside): principal in the first degree (did it); principal in the second degree (present, aiding); accessory before the fact (aided beforehand, absent); accessory after the fact (helped the felon escape afterward). **Modern rule: most states abolished the distinctions** — everyone who aids is an "accomplice," liable **as a principal**. On the MBE, use the modern rule unless the question says otherwise.

Elements — four, and the exam tests each:

1. **Intent to aid, assist, or encourage** the principal;

2. **Intent (purpose) that the principal commit the crime** — the **dual-intent** requirement. Knowledge alone is not enough: the accomplice must act *with the purpose* of facilitating the crime. (*Rosemond v. United States*: the accomplice must have **advance knowledge of the whole plan** — knowing a gun would be used in the robbery, not just knowing a drug deal was happening.)
3. **Actual aid or encouragement given — mere presence at the scene is NOT enough**, unless the presence was intended to encourage and did encourage (the lookout who shows up to embolden the burglars counts; the bystander who just watches does not).
4. **Derivative** — the principal must commit (or attempt) the underlying crime. No principal crime, no accomplice liability. *Exception:* the **innocent-agent doctrine** — if the "doer" is innocent (a child, an insane person, someone tricked into the act), the person who used them is liable **as the principal directly**, not merely as an accomplice.

Scope — the common-law/MPC split:

- **Common law:** the accomplice is liable for the target crime **AND any other crime that was the natural and probable consequence** of the criminal venture. The burglary aider is liable when the principal unexpectedly shoots the confronting homeowner — a killing is a foreseeable consequence of burglary.
- **MPC (§2.06):** narrower — the accomplice is liable only for offenses he had the **purpose** to promote or facilitate. Know both; apply the one the question's rulebook uses.

Each person's liability is measured by his OWN mens rea: the accomplice can be guilty of a **greater** offense than the principal — the principal kills negligently (manslaughter) while the aider intended the death (murder for the aider).

Withdrawal: the accomplice must **communicate** the withdrawal and **neutralize any assistance** already given, **before** the crime is committed. Simply walking away is not enough if the gun you supplied is still in play.

Accessory after the fact: knowledge that a felony was committed + **personal aid** helping the felon avoid apprehension or punishment = a **separate, lesser offense** (hindering apprehension / obstruction) — NOT liability for the original crime.

Defenses: the principal's **justification** (self-defense) transfers to the accomplice — if the principal is acquitted on justification, so is the aider. The principal's **personal excuse** (insanity) does **not** transfer.

PRACTICE — four drills, one letter each

ATTEMPT BREAK — answer all four (e.g., "B, B, C, C") from the lesson above, then send the letters. Analyses are held back.

D1 — The empty pocket. D slips his hand into V's coat pocket intending to steal V's wallet, but the pocket is empty — V left the wallet at home. D is arrested with his hand still in the pocket. D is guilty of:

- **A.** Nothing — the crime was impossible to complete
- **B.** Attempted larceny
- **C.** Completed larceny
- **D.** Conspiracy to commit larceny

D2 — The undercover "partner." D and U agree to rob a bank next Tuesday. U is an undercover officer who never intended to rob anything, and the two take no step toward the robbery. Under the Model Penal Code, D is guilty of:

- **A.** Nothing — there was no genuine agreement and no overt act
- **B.** Conspiracy
- **C.** Attempted robbery
- **D.** Solicitation

D3 — The "attempted" killing. D, fleeing the scene of a burglary, fires wildly at pursuing police officers to scare them off. A bullet grazes one officer, who survives. The prosecution charges attempted felony murder. D is:

- **A.** Guilty of attempted felony murder
- **B.** Guilty of attempted depraved-heart murder
- **C.** Not guilty of either attempted charge, but guilty of aggravated assault
- **D.** Guilty only of the burglary

D4 — The borrowed car. D lends his car to two men, knowing they will use it as the getaway car for a burglary they have planned. D is not part of their plan and shares no agreement with them. During the burglary, one burglar shoots and kills a homeowner who confronts him. Under the common-law approach, D is guilty of:

- **A.** Nothing — assistance without an agreement creates no liability
- **B.** Burglary as an accomplice, but not the homicide
- **C.** Burglary and murder as an accomplice
- **D.** Murder only, under Pinkerton liability

ATTEMPT BREAK — send your four letters (e.g., "B, B, C, C") before reading on. The checking key below is HELD BACK.

CHECKING KEY — Drill Analyses

1. **B.** Attempted larceny. Classic factual impossibility — the pickpocket's empty pocket — which is NEVER a defense under either rulebook. D had specific intent to steal and went beyond mere preparation (hand in the pocket). A states the oldest impossibility trap as if it were law. C is wrong: larceny requires actually taking and carrying away the property — nothing was taken. D is wrong: conspiracy needs an agreement between two or more; D acted alone.
2. **B.** Conspiracy — under the MPC's unilateral approach, one genuine criminal mind suffices, so D's agreement with the feigning undercover officer IS conspiracy. And the overt-act objection in A fails on the MPC's own terms: §5.03(5) requires no overt act for conspiracy to commit a first- or second-degree felony, and robbery is a second-degree felony under the MPC. A states the common-law bilateral rule — wrong rulebook. C is wrong: mere agreement is not a substantial step toward robbery. D is wrong: solicitation is the *asking* — here there was mutual agreement, which is conspiracy's territory.
3. **C.** There is no such crime as attempted felony murder (A) or attempted depraved-heart murder (B) — attempt requires specific intent to kill, and you cannot "intend" an unintentional killing. But the assault is complete: firing at the officers to scare them off satisfies assault (intent to cause apprehension of imminent harmful contact + apparent present ability). D understates it — the completed assault stands alongside the burglary.
4. **C.** Accomplice liability, common-law scope: D acted with dual intent — he lent the car *knowing* it was for the burglary and *with the purpose* of facilitating it — and gave actual aid. Under the common law the accomplice answers for the target crime AND its natural and probable consequences; a killing during a burglary is foreseeable. A is wrong: accomplice liability needs aid + purpose, not an agreement (that's conspiracy). B applies the narrower MPC §2.06 scope — wrong rulebook for this question. D mislabels the theory: Pinkerton liability requires *conspiracy membership*, and D shares no agreement with the burglars — he is an aider, not a co-conspirator.

Weak areas (update after grading): pending his Session 10 + 11 letters, then these four. Watch the overt-act split (CL vs. MPC/federal), the no-attempt-for-unintentional-crimes rule, and accomplice scope (CL natural-and-probable vs. MPC purpose).
Next: Session 14 — Criminal Law IV: defenses — justification (self-defense/deadly force, necessity) vs. excuse (duress, entrapment, insanity, infancy), plus the intoxication recap.

SPACED REVIEW — Session 12 (homicide), in six lines

- **Malice aforethought** = four routes (intent to kill / intent to inflict serious bodily injury / depraved heart / felony murder). "Aforethought" does NOT mean premeditation.

- **First degree** = deliberate + premeditated (premeditation can form in an instant); **second degree** = all other malice. Two-step method: murder at all? → which degree?
- The four-way line: extreme recklessness + death = 2nd-degree murder; ordinary recklessness = involuntary manslaughter (CL); criminal negligence = involuntary manslaughter; ordinary negligence = no crime (CL).
- **Felony murder limits:** inherently dangerous felony; merger (the assault that caused the death can't be the predicate); agency (majority); res gestae (until temporary safety); foreseeable manner. MPC: no separate rule — rebuttable presumption of extreme indifference.
- **Voluntary manslaughter:** heat of passion + adequate provocation (mere words inadequate, majority rule) + actual passion + no cooling time + causation. **Imperfect self-defense** (honest but unreasonable belief) reduces murder → voluntary manslaughter.
- **Year-and-a-day abolished** (trap answer); subsequent medical negligence foreseeable; victim's refusal of treatment doesn't break the chain.

Tomorrow

Session 14 — Criminal Law IV: Defenses. Justification vs. excuse — self-defense and deadly force, necessity, duress, entrapment, insanity (M'Naghten vs. MPC), infancy — and the intoxication recap. Then criminal procedure begins.

PART IV

Session 14 — Criminal Law IV: Defenses (Justification vs. Excuse)

Phase 1 · Criminal Law. Lesson notes for Julius — written version of the voice note.

Housekeeping (10 seconds)

The drill loop is clear — Sessions 10, 11, and 13's letters all came back and were graded (10: 3/4, 11: 3/4, 12: 4/4, 13: 3/4). That's the only admin; now the doctrine.

The big frame: justification vs. excuse

Every defense falls into one of two families. Know which family you're in — it drives the essay analysis.

- **Justification** — the *act* was the right thing under the circumstances. The defendant admits what he did but says the law approves it. Self-defense, defense of others, defense of property, necessity. Result: the act isn't criminal at all. (Notice: this is also why the victim of justified force can't claim self-defense back — there is no unlawful force to resist.)
- **Excuse** — the *actor* couldn't be blamed even though the act was wrong. The defendant was broken in a way the law recognizes: duress, insanity, infancy, involuntary intoxication, entrapment. Result: no culpability.

Your Nigerian bridge: you know Chapter 5 of the Criminal Code — the "general defences" (ss. 24–32: mistake, insanity, intoxication, infancy, provocation, self-defence). The US material is the same idea, sorted into two shelves. Nothing here should feel alien; the exam tests the *boundaries*.

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1. Self-defense

The three elements (always say them first in the essay):

1. A **reasonable belief** that force is necessary — judged objectively (would a reasonable person in the defendant's shoes believe it?) — no actual attack required, but the belief must be reasonable.
2. Against an **imminent** (right-now) **unlawful** threat of force.
3. **Proportional** response — non-deadly threat meets non-deadly force.

Deadly force is the gated version. You may use deadly force only if you reasonably believe it is necessary to prevent **imminent death or serious bodily injury (SBI)** to yourself. (Serious bodily injury = substantial risk of death, or serious, protracted disfigurement or impairment.)

Retreat — the exam's favorite trap inside self-defense:

- **Majority rule: no duty to retreat.** If you're somewhere you have a right to be, you may stand your ground and meet force with force.
- **Minority rule (about a dozen states):** you must retreat if you can do so in complete safety before using deadly force.
- **Castle doctrine (near-universal):** in your own home you never have to retreat — no state imposes a retreat duty against an intruder in your dwelling.

Initial aggressor. The person who *starts* the fight can't claim self-defense — unless they (a) **completely withdraw** and communicate the withdrawal, or (b) the victim **escalates** a non-deadly fight into a deadly one. Then the aggressor regains the right.

Imperfect self-defense (minority rule, but heavily tested): an *honest but unreasonable* belief in the need for deadly force doesn't acquit — it **reduces murder to voluntary manslaughter**. Memorize that sentence. It pairs with Session 12's adequate-provocation rule as the two "mitigation doctrines" that turn murder into manslaughter.

Defense of others. Majority rule today: you may defend another if you **reasonably believe** they have the right of self-defense — even if you turn out to be wrong about the facts (the "alter-ego" rule — stepping exactly into their shoes — is the dying minority view). Exam trap: intervene on a stranger's behalf when the "victim" was the actual aggressor — majority rule still protects you if your belief was reasonable.

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2. Defense of property and the mechanical-device rule

- **Non-deadly** force may be used to defend property.
- **Deadly force may NEVER be used solely to defend property.** It is lawful only where defense of property coincides with defense of the person (e.g., an intruder in your occupied home at night).
- **Mechanical devices** (spring guns, traps): you may not do indirectly what you couldn't do directly. *Katko v. Briney* — a spring gun set to shoot a burglar is unlawful if shooting the burglar in person would have been unlawful. Test tip: if the question says "he wasn't home," the defense of *person* is gone, and deadly force to protect the cabin alone fails.

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3. Necessity (the "choice of evils")

The defendant broke the law to avoid a greater harm. All six elements must be met:

1. An **imminent** threat of greater harm (natural forces or human conduct — a storm, a fire, a runaway car);
2. **No reasonable legal alternative** — the defendant had to act;
3. A **direct causal connection** between the act and avoiding the harm;
4. The defendant **did not create the peril** (you can't set the fire and claim necessity to steal the extinguisher);
5. **Proportionality** — the harm avoided outweighs the harm caused (you may destroy property to save a life, never the reverse); and
6. **No adequate legislative choice** — the legislature hasn't already balanced the competing values.

Three classic exam limits:

- *R v. Dudley & Stephens* (1884): **necessity is NEVER a defense to intentional murder.** The cabin boy was killed to feed the survivors — convicted. Human life is never weighed against human life.
- **Economic necessity** (stealing to feed your family) is never a defense.
- **Prison escape** cases: necessity applies only if the prisoner faced imminent death/SBI *and* surrendered to authorities at the first safe opportunity.

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4. Duress

Elements: (1) an **imminent threat of death or SBI** from another human being (not a natural force — that's necessity); (2) directed at the defendant or a **close family member**; (3) the defendant had **no reasonable opportunity to escape**; (4) the defendant was **not at fault** in being subjected to the threat (you can't join a gang and claim duress when the gang turns on you).

- The Model Penal Code (§2.09) restates it as: would a person of **reasonable firmness** in the defendant's situation have been unable to resist? Same outcome.
- **Duress is NEVER a defense to intentional homicide.** Forced at gunpoint to kill — still murder. (Common-law and MPC agree here; Nigeria's Criminal Code s. 32 is to the same effect.)
- Duress *is* a defense to lesser crimes (robbery, burglary, perjury — even under threat you can't be forced to commit perjury in most formulations... careful: exam tests that duress fails only for homicide).

5. Entrapment

Applies only where **the government** induced the crime. Two-part test under the **subjective (majority/federal) test**:

1. **Government inducement** — the police planted the idea / persuaded, not merely provided an opportunity. ("We have drugs for sale, interested?" = opportunity, not inducement. Repeated pressure, exploiting friendship, huge markups of profit = inducement.)
2. **No predisposition** — the defendant was not already inclined to commit this type of crime. Predisposition is shown by prior similar conduct, eagerness, expertise.

MPC / objective minority test (§2.13): asks about *police conduct* — would the methods create a substantial risk that an innocent, law-abiding person would commit the offense? Defendant's history is irrelevant. The bar loves asking you to spot which test the question is using: "was he predisposed?" = subjective test.

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6. Insanity — the four tests (learn this ladder cold)

- **M'Naghten (majority rule)** — cognitive only. The defendant is insane if, because of a **mental disease or defect**, he either (a) **did not know the nature and quality** of his act, or (b) **did not know that what he was doing was wrong**. Know-right-from-wrong = sane. (Your Nigerian bridge: this is Criminal Code s. 27 — you already know this test by its other name.)
- **Irresistible impulse** — add-on test in some states: defendant knew it was wrong but, because of mental disease, **could not control** his conduct (volitional prong added to M'Naghten).
- **MPC §4.01 (substantial capacity)** — because of mental disease or defect, the defendant lacked **substantial capacity** either to **appreciate the criminality** of his conduct **or** to **conform** his conduct to the law. "Substantial" (not total) + either prong = the broadest test.
- **Durham "product" test** — an act was the *product* of mental disease. Effectively dead: rejected by every federal court after the Hinckley acquittal (1981) and the Insanity Defense Reform Act of 1984.

Exam-critical extras:

- **Burden of proof:** most states — defendant proves insanity by a **preponderance of the evidence**. Federal (post-1984) — defendant proves by **clear and convincing evidence**. The prosecution never has to prove sanity as an element.

- **Guilty but mentally ill (GBMI):** a verdict option in some states — convicted *and* ordered to receive treatment. It is a conviction, not an acquittal.
- **Competence to stand trial is a different question** (*Dusky* standard: can the defendant understand the proceedings and assist counsel?). Incompetence *pauses* the trial; insanity is a *defense at* trial. The exam deliberately confuses these — don't let it.
- **Voluntary intoxication** is not a mental disease (recap of Session 11): it only negates specific-intent crimes. **Involuntary intoxication** (drugged without knowledge, unexpected reaction to prescribed medication) is treated like insanity — assessed under M'Naghten.

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7. Infancy

Common-law ages (the exam's baseline): **under 7** = **no criminal capacity** (conclusive); **7–14** = **rebuttable presumption of incapacity** (prosecution can prove the child knew right from wrong); **14 and up** = **treated as an adult**. Modern statutes mostly route juveniles to family/juvenile court, but the MBE still tests the common-law ages.

Quick-reference: defense → what it defeats

Defense	Homicide?	Effect if it works
Self-defense / defense of others	Full acquittal (justified)	Acquittal
Necessity	Acquittal except murder (Dudley & Stephens)	Acquittal
Duress	NEVER to intentional homicide	Acquittal (lesser crimes)
Entrapment	Acquittal	Acquittal
Insanity (M'Naghten/MPC)	Acquittal (not guilty by reason of insanity)	Commitment, not prison
Imperfect self-defense	Murder → voluntary manslaughter	Mitigation, not acquittal
Infancy	No capacity	No prosecution

Practice drills (4) — attempt before reading on

Reply with the four letters (e.g. "C, A, B, D"). The analyses are held back — I'll check your letters when they come in, same drill deal as always.

D1. At 2 a.m., Marcus hears glass break and finds a stranger climbing through his kitchen window holding a crowbar. Marcus's family is asleep upstairs. Marcus shoots the intruder dead. The intruder had made no verbal threat and had not seen Marcus. Under the majority rule, Marcus's best defense is:
(A) He had a duty to retreat before using deadly force.
(B) Castle doctrine — no duty to retreat in his own home, and deadly force was justified by a reasonable fear of imminent death or SBI.
(C) Defense of property, because the intruder was committing burglary.
(D) Imperfect self-defense, reducing the charge to manslaughter.

- Stop — answer D1 before reading on.*

D2. Lena's ex-husband holds a gun to her six-year-old daughter's head and orders Lena to drive the getaway car for a bank robbery. Lena drives. She is charged with robbery. Her duress defense:
(A) Fails, because duress requires the threat to be directed at the defendant herself.
(B) Fails, because robbery is a serious felony.
(C) Succeeds, because the threat was imminent death to a close family member and she had no reasonable escape.
(D) Succeeds only if she can prove she would not have driven but for the threat.

- Stop — answer D2 before reading on.*

D3. Daniel, suffering from paranoid schizophrenia, kills a stranger because he genuinely believes God commanded the killing as a holy act. He understood he was ending a human life, but he believed the act was morally commanded and therefore not wrong. Under the M'Naghten test, Daniel is:
(A) Sane, because he knew the nature and quality of his act.
(B) Insane, because he did not know that what he was doing was wrong.
(C) Sane, because schizophrenia is not a mental disease under M'Naghten.
(D) Insane only under the irresistible-impulse test, not M'Naghten.

- Stop — answer D3 before reading on.*

D4. An undercover agent befriends Paul, a man with no criminal record, and over six weeks of daily calls begs him to find a drug supplier, finally offering triple the street price. Paul reluctantly arranges one sale and is arrested. Paul's entrapment defense under the federal (subjective) test:
(A) Fails, because providing the opportunity to buy drugs is enough to defeat entrapment.

(B) Succeeds, because the agent induced the crime and Paul showed no predisposition.
(C) Fails, because Paul completed the sale voluntarily.
(D) Succeeds only under the MPC objective test.

- Stop — answer D4 before reading on.*

Spaced review — Session 13 (Inchoate crimes & accomplice liability), in 60 seconds

- **Attempt:** specific intent + an act beyond **mere preparation** (CL) or a **substantial step** strongly corroborative of purpose (MPC §5.01). **Factual impossibility is never a defense** (empty pocket still = attempted larceny); legal impossibility mostly survives only at common law. There is **no attempt for unintentional crimes** — no attempted depraved-heart murder, felony murder, or involuntary manslaughter.
- **Conspiracy:** agreement + dual intent. Common law needs **no overt act**; federal law, most states, and MPC §5.03(5) **require one** (any act, even lawful — except MPC needs none for first/second-degree felonies). **Bilateral (CL majority)** = no conspiracy with a feigning undercover agent; **unilateral (MPC minority)** = conspiracy exists if the defendant believed he agreed. No merger with the completed crime. **Pinkerton**: each conspirator liable for foreseeable substantive crimes of co-conspirators in furtherance of the conspiracy. **Wharton's rule**: target crimes needing exactly two people (dueling, adultery, bribery) need a third conspirator.
- **Solicitation:** complete on communication; merges into conspiracy or the completed offense.
- **Accomplice liability:** modern rule — accomplice liable as principal. Four elements, with **dual intent** (purpose to facilitate, *Rosemond* advance knowledge of the whole plan — mere knowledge isn't enough). Scope split: CL **natural-and-probable-consequences** vs. MPC §2.06 **purpose-only**. Accessory after the fact = separate lesser offense.

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*Next: **Session 15** — Criminal Procedure I: the Fourth Amendment — searches, seizures, the warrant requirement, and when the police don't need one.*

PART V

Session 15 — Criminal Procedure I: The Fourth Amendment (Search & Seizure)

Phase 1 · Criminal Procedure. Lesson notes for Julius — written version of the voice note.

One line first

Every drill set is closed. Nothing is outstanding — Sessions 10 through 14 are all graded, all banked, and the whole criminal-liability arc (actus reus → homicide → inchoate → defenses) is finished. We open a new book today: criminal *procedure* — the rules that govern how the police investigate. And pal, this one is personal: you've done stops, searches, and arrests for twenty years. Today you get the American rulebook for the same work.

The big frame: ask two questions, in order

When police act and the defense moves to suppress, run this classify-first habit every time:

1. **Was there a search or seizure at all?** If the Fourth Amendment doesn't even apply, the police needed nothing. If it does —
2. **Did they have a warrant, or does an exception fit — with EVERY element met?** The warrant is the default. Every warrantless police action must fit an exception completely. The MBE's favorite wrong answer is the exception with one element missing.

Memorize the shape: *search/seizure? → warrant? → exception, element by element.*

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1. Was it a "search"? — two doors in, either one suffices

First, what the words mean. A **search** is a government intrusion into something you have a right to keep private. A **seizure** is the government taking or holding you (or your property). "Government" matters — the Fourth Amendment restrains the *state*, not private people: a store detective acting purely on his own isn't a state actor, but police directing him are.

Door one — *Katz v. United States* (1967): the "reasonable expectation of privacy" test (REP). Two prongs: (a) you *subjectively* expected privacy, and (b) society recognizes that expectation as *objectively reasonable*. Katz was making calls from a glass phone booth; the government said "he exposed his voice." The Court said the expectation is what counts — what you seek to preserve as private may be constitutionally protected.

Door two — *United States v. Jones* (2012): the trespass revival. If the police physically intrude on your "persons, houses, papers, or effects" *to gather information*, that's a search — even if no REP analysis is needed (GPS tracker stuck on a car). Either door makes it a search. The exam loves giving you a fact pattern where one door is shut and the other is open.

Things with NO reasonable expectation of privacy (no search at all):

- What you knowingly expose to the public — your voice in a public place, your face on the street.
- **Trash left at the curb** for collection — *California v. Greenwood* (1988). Once it's at the curb, you've abandoned your privacy claim.
- **Open fields** beyond the home and its curtilage (the fenced yard right around the house) — *Oliver v. United States* (1984). "No Trespassing" signs don't create REP in a field.

Things WITH REP (the exam's modern edge):

- **127 days of cell-site location records** — *Carpenter v. United States* (2018). Long-term tracking reveals a "comprehensive chronicle" of your life; you have REP in the whole, even if each public sighting alone wouldn't.
- **Details of your home's interior learned with sense-enhancing technology not in general public use** — *Kyllo v. United States* (2001): aiming a thermal imager at a house from the street is a search. The home is the apex of REP; the government may not see through its walls.

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2. Was it a "seizure"?

- **Of a person:** a show of authority that would make a reasonable person feel *not free to leave* — patrol lights, a physical touch, blocking the path. An **arrest** is the full seizure (needs probable cause); an **investigative stop** is the brief one (needs only reasonable suspicion — see §4). A consensual chat ("mind if I ask you a question?") with no show of authority is no seizure at all.
- **Of property:** a "meaningful interference" with your possessory interest — taking the suitcase, not merely looking at it.

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3. The warrant — the default, and its three requirements

Warrant (define it once, use it forever): a court order authorizing a search or arrest. For a search warrant, all three are mandatory:

1. Issued by a **neutral and detached magistrate** — a judge, not the officer's own supervisor;

2. Supported by **probable cause** (see §4); and
3. **Particularly describing** the place to be searched and the things to be seized.

The constitutional enemy is the **"general warrant"** — a blank permission to rummage wherever the officer pleases. Particularity is what killed it.

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4. The three burdens, in ascending order

The exam loves asking you to rank or confuse these. Lowest to highest:

1. **Reasonable suspicion** — *specific, articulable facts* (more than a hunch) suggesting criminal activity is afoot. Supports a **Terry stop** and nothing more.
2. **Probable cause** — a *fair probability*, judged on the *totality of the circumstances*, that contraband or evidence will be found (search) or that the person committed a crime (arrest). Supports arrests and warrants.
3. **Preponderance of the evidence** — more likely than not. This is the *civil* standard; it appears here only so you never confuse it with probable cause.

Bridge from your training: you know the difference between "intelligence suggests" and "we have enough to charge." Reasonable suspicion is the first; probable cause is the second.

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5. Standing — who may complain?

Standing means: only the person whose *own* Fourth Amendment rights were violated may ask the court to suppress evidence. Your rights travel with you, not with the contraband.

- An **overnight guest** has REP in the host's home and may challenge the search — *Minnesota v. Olson* (1990).
- A **mere passenger** in someone else's car usually may not — no possessory interest in the car — *Rakas v. Illinois* (1978). (The driver/owner can.)

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6. The exception catalog — when the police don't need a warrant

Each exception is a checklist. One missing element kills it. This is the section the MBE mines hardest.

a) Search incident to a lawful arrest — *Chimel v. California*. After a lawful arrest, police may search the arrestee's **person** and the area within his **immediate control** (arm's reach — where he might grab a weapon or destroy evidence). For **cars**, *Arizona v. Gant* (2009) narrows it to two surviving doors: the search is lawful only if (1) the arrestee is **unsecured and might reach** the passenger compartment, **or** (2) it's reasonable to believe **evidence of**

the crime of arrest is inside. Arrestee handcuffed and locked in the cruiser on a traffic warrant? Both doors shut — no search. Memorize the two doors.

b) *Terry* stop and frisk — two steps, two justifications. The **stop** (brief detention) needs **reasonable suspicion of criminal activity** — specific facts, like the casing pattern in the worked example below. The **frisk** (pat-down) is a *separate* step needing reasonable suspicion the person is **armed and dangerous**. Scope: pat the **outer clothing** first; reach inside only if you feel something that is plainly a weapon — **plain feel** (*Minnesota v. Dickerson*). Stop without frisk-basis = frisk unlawful. This two-step split is the single most-tested Terry point.

c) The automobile exception — *Carroll v. United States*. Probable cause + a readily mobile vehicle → police may search the *entire* car, including closed containers inside, without a warrant. (Rationale: cars move, and they're pervasively regulated, so privacy expectations are lower.) Note the "plus": probable cause alone isn't the exception — mobility is the second element.

d) Exigent circumstances. No warrant needed for **hot pursuit** of a fleeing suspect, **imminent destruction of evidence**, or **emergency aid** to someone believed inside and in danger. Scope is limited to the emergency — once it ends, so does the exception.

e) Consent. A search is reasonable if the person **voluntarily** consents — no claim of lawful authority, no coercion of custody. A third party with **common authority** (a roommate, over shared spaces) can consent — **BUT** a physically present co-occupant who **objects** defeats the consent (*Georgia v. Randolph*, 2006). If the objector has been lawfully removed (arrested and taken away), the remaining occupant's consent stands (*Fernandez v. California*, 2014). The one-liner: **presence decides.**

f) Plain view. The officer is **lawfully present** at the vantage point, the contraband is **immediately apparent** as such, and he has lawful access to it. Seeing it isn't a search; seizing it is the exception.

g) Inventory search. A car **lawfully impounded**, searched under **standardized, non-pretextual procedures** → the inventory is reasonable. (No standardized procedures = no exception — an on-scene rummage isn't an inventory.)

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7. The exclusionary rule — and where it does NOT reach

The **exclusionary rule**: evidence obtained in violation of the Fourth Amendment is **excluded at trial**. It is a **deterrent** aimed at police misconduct — not a personal right of the defendant. Because of that purpose:

- *Mapp v. Ohio* (1961) made the rule binding on the **states** (it already bound federal courts).

- It does **NOT** apply in **grand-jury proceedings**, **civil cases**, or **parole-revocation hearings** — no jury deciding guilt, no deterrence payoff.
- Illegally obtained statements **may** still be used to **impeach** the defendant's own testimony — *Harris v. New York* (1971). (You can't use the violation as a sword to lie on the stand.)

Fruit of the poisonous tree: evidence *derived* from the violation is excluded too — unless one of the three antidotes saves it:

1. **Independent source** — the police got it separately through a lawful path.
2. **Inevitable discovery** — they *would* have found it anyway through lawful means already in motion (*Nix v. Williams*: the second search team was already on its way).
3. **Attenuation** — the taint faded, judged by three factors: time passed, intervening circumstances, and the flagrancy of the misconduct (*Utah v. Strieff*: an outstanding arrest warrant discovered during an unlawful stop broke the chain).

Plus one more safety valve: **good faith** — *United States v. Leon* (1984). Officers **reasonably relied on a warrant** that later turns out defective (magistrate's error, not theirs) → the evidence stays. No deterrence purpose in punishing an honest mistake.

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8. Worked example — Terry, the MBE's favorite police fact pattern

Officer Cole, patrolling at 2 a.m., watches Kelechi pace past a closed jewelry store six times, peering into the window, conferring with a second man, then walking away and returning. Cole approaches, asks for ID; Kelechi mumbles and reaches into his jacket pocket. Cole pats down the jacket's outer surface, feels a hard object shaped like a pistol grip, reaches in, and seizes a gun. The DA wants the gun admitted.

Step 1 — was there a search/seizure at all? Yes. The stop is a seizure of the person (Kelechi isn't free to leave); the pat-down is a search. So the Fourth Amendment applies, a warrant is normally required, and we need an exception with every element met.

Step 2 — the exception's elements. *Terry v. Ohio*: (a) the **stop** needs **reasonable suspicion** of criminal activity — specific, articulable facts, more than a hunch (the pacing/peering/conferring is the classic casing pattern); (b) the **frisk** is a separate step needing reasonable suspicion the person is **armed and dangerous** (late-night burglary-in-progress context + the pocket reach); (c) scope: pat the **outer clothing** first, reach inside only on the **plain feel** of a weapon.

Step 3 — apply. Specific facts → reasonable suspicion → lawful stop. Armed-and-dangerous suspicion → lawful frisk. Pistol-grip shape through the fabric → plain feel → reach-in lawful. **The gun is admitted.**

Step 4 — the contrasts that lock it (the MBE moves one fact at a time): stop him only because it's a "high-crime area," with no specific facts → no reasonable suspicion → unlawful stop → gun excluded. Pat him down with no armed-and-dangerous basis → frisk exceeds *Terry* → excluded. Reach straight into the pockets without feeling a weapon first → exceeds scope → excluded. And if Cole had probable cause to arrest first, the exception switches to **search incident to arrest** — the label changes because the justification did.

Practice drills (4) — attempt before reading on

Reply with the four letters (e.g. "B, C, C, B"). The analyses are held back — I'll check your letters when they come in, same drill deal as always. And the standing rubric from your miss signature: **when a question names a test or exception, say the test's trigger words before applying** — then check every element.

D1. Without entering the home, an officer aims a thermal-imaging device at D's house from the public street and detects unusual heat patterns suggesting an indoor marijuana grow. He gets a warrant based solely on that imaging. At trial D moves to suppress the grow-house evidence, arguing the imaging itself was an unconstitutional search. Result?
(A) The evidence stays — no physical trespass occurred, so no search took place.
(B) The warrant is void and the evidence is suppressed — using sense-enhancing technology not in general public use to learn details of the home's interior IS a search, so the warrant's only basis was unconstitutionally obtained.
(C) The imaging is a search but no warrant was needed — heat patterns carry no expectation of privacy.
(D) The imaging is lawful — thermal imagers are in general public use.

• Stop — answer D1 before reading on.*

D2. At 11 p.m. in a neighborhood known for drug trafficking, an officer sees a man standing on a corner, briefly speaks with him, and watches the man run when marked police cars approach. The officer chases, stops him, pats him down, and finds drugs in his pocket. Result?
(A) Lawful stop and lawful frisk — flight from police is always enough.
(B) Unlawful stop but lawful frisk.
(C) Lawful stop — flight plus high-crime area plus late night gives reasonable suspicion — but the frisk was unlawful: no facts suggested he was armed and dangerous, so the drugs are suppressed.
(D) Unlawful stop and unlawful frisk — a high-crime area can never support reasonable suspicion.

• Stop — answer D2 before reading on.*

D3. An officer arrests the driver on an outstanding traffic warrant, handcuffs him, and locks him in the back of the cruiser. She then searches the car's passenger compartment and finds cocaine in the glove box. At the suppression hearing she testifies the search was incident to the arrest. Result?
(A) Lawful — a lawful arrest always authorizes searching the car.
(B) Lawful — the automobile exception needs no probable cause.
(C) Unlawful — under *Arizona v. Gant*, once the arrestee is secured the car may not be searched incident to arrest unless he might still access it or evidence of the crime of arrest might be inside; neither is true here. Suppress the cocaine.
(D) Lawful — a routine inventory search.

• Stop — answer D3 before reading on.*

D4. Officers illegally enter D's home without a warrant and photograph a ledger on the table. Unknown to them, a separate team had already obtained a valid search warrant for the same home and was ten minutes away; they would have photographed the same ledger. At trial the photos are:
(A) Suppressed — fruit of the poisonous tree, and no exception applies.
(B) Admitted — inevitable discovery: the warrant team was already on its way and would have found the ledger lawfully.
(C) Admitted — the good-faith exception, because the officers believed the entry was lawful.
(D) Suppressed — attenuation requires the taint to fade over time, and ten minutes is not enough.

• Stop — answer D4 before reading on.*

Your investigator transfer (one question for you)

In your SIB years, you ran operations with stops, vehicle searches, and premises entries. Under this American rulebook: **which of your searches would have needed a warrant, and which exceptions would have covered you?** And where did you draw the line in practice between a stop, a frisk, and an arrest? The labels are new; the police work is old — I'd like to hear where your line was.

Confidence check

On a 1–5 scale: *"I can tell when the police need a warrant, and I know which exception replaces it."* Send the number with your four letters — I'm tracking your confidence against your accuracy.

Spaced review — Session 14 (Defenses), in 60 seconds

Try to say each one from memory before reading the line.

- **Justification vs. excuse:** justification = the *act* was right (self-defense, defense of others/property, necessity); excuse = the *actor* isn't blameworthy (duress, insanity, infancy, intoxication, entrapment). State the family first in the essay.
- **Self-defense:** reasonable belief + imminent unlawful threat + proportional response. **Deadly force** only on reasonable belief of imminent death or SBI. **Retreat:** majority — no duty; minority — retreat if safely possible; **castle doctrine** — never retreat in your own home. **Imperfect self-defense** (honest but unreasonable belief) reduces murder → voluntary manslaughter.
- **Defense of property:** non-deadly force fine; **deadly force NEVER solely for property**; mechanical devices — no doing indirectly what you couldn't do directly (*Katko v. Briney*).
- **Necessity:** six elements (imminent greater harm, no legal alternative, causal link, didn't create the peril, proportionality, no legislative choice). **Never a defense to intentional murder** (*Dudley & Stephens*); economic necessity never.
- **Duress:** imminent death/SBI threat from a human, to self or close family, no escape, no fault. **Never a defense to intentional homicide.**
- **Entrapment:** government inducement only. Subjective (majority/federal): inducement + **no predisposition**. MPC objective: police conduct — would it tempt a law-abiding person?
- **Insanity ladder:** M'Naghten (cognitive: didn't know nature/quality OR didn't know it was wrong — **either/or** — banked: *knowing the act is not enough; he must also know it's wrong*) → irresistible impulse (knew wrong, couldn't control) → MPC §4.01 (lacked *substantial capacity* to appreciate criminality OR conform conduct — broadest) → Durham product test (dead).
- **Infancy:** under 7 conclusive incapacity; 7–14 rebuttable; 14+ adult.

The permanent miss bank, still standing: common law needs two guilty minds, the MPC needs one · cover minus contract, times quantity · Hadley foreseeability judged at formation · recklessness is subjective · M'Naghten is either/or.

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*Next: **Session 16** — Criminal Procedure II: the Fifth Amendment (self-incrimination, *Miranda* warnings) and the Sixth Amendment (right to counsel, lineups and identifications).*